

PlanitBER — Data Protection Impact Assessment

Oct 9, 2026 · John Turley, SEAI-registered BER assessor, reg. 100615

PlanitBER pack · document 7 of 7 · Draft for discussion, to be signed before the first request

PlanitBER's processing for the NAS Trusted Partner API trial can go ahead once the six open items at the end are closed. No high risk to homeowners remains once the measures in the risk table are in place, so prior consultation with the Data Protection Commission is not needed.

Document control

Item	Detail
Controller	John Turley, trading as PlanitBER, Killyleen, Ballinode, Co. Monaghan
Role in the trial	SEAI-registered BER assessor (reg. 100615) and named BER data requestor
Contact	mc2rating@gmail.com · 087 981 0150
Processing assessed	Use of the NAS Trusted Partner API and the PlanitBER software to produce homeowner tender documents
Version	1.0, draft for sign-off
Prepared	9 October 2026
Review	Before the trial starts, at month 6, and whenever the processing changes
Pack reference	Supports PlanitBER document 06, Data Protection

Why this DPIA is needed

The trial adds processing that PlanitBER does not do today, so a DPIA is required before it starts. Document 06 committed to one if the software ever integrated with the NAS Trusted Partner API. This is that DPIA. The [Trusted Partner Agreement](#) also requires

written confirmation of one (Schedule 2, Criterion 2.4).

Today, PlanitBER is one file running in the assessor's own browser. It has no server, no account and no network calls carrying homeowner data. The trial changes three things:

- **A government dataset is queried.** The published BER record for a dwelling is pulled from SEAI's National Administration System (NAS), by MPRN, on the homeowner's consent.
- **Proof of ownership is sent to SEAI.** Each request must carry evidence of ownership or occupancy, such as a utility bill showing the MPRN (Criterion 3.4). SEAI keeps it for the trial.
- **Modified BER files go to the DEAP engine.** The agreed measures are sent as a modified BER file to estimate the energy uplift of each package.

These involve personal data linked to a home and an identifiable household, matched against a public body's register, for a new technology use. Under Article 35 of the GDPR and the Data Protection Commission's guidance, that is enough to need a DPIA.

The processing

Everything below is processed for one purpose: producing a homeowner's cost plan, pricing schedule and appendix. Fields marked new only arise in the trial. The homeowner, and an agent where one acts for them, are the only data subjects. No special category data, children's data, PPS numbers, financial details or photographs are collected.

Data	Source	Why it is needed	Where it goes	Kept for
Name and site address	Homeowner	To address the documents and identify the dwelling	Assessor's browser storage; printed on the three documents	BER record period (open item 1)
MPRN (new)	Homeowner or utility bill	SEAI's key for the BER record request	Sent to SEAI with each request	As name and address
Proof of ownership or occupancy (new)	Homeowner, usually a utility bill	Required by SEAI with every request (Criterion 3.4)	Uploaded to SEAI, which keeps it for the trial	Not kept by the assessor once SEAI accepts the request

Data	Source	Why it is needed	Where it goes	Kept for
Agent's authority (new, where relevant)	Agent	Shows the agent may act for the owner	Uploaded to SEAI with the request	As proof of ownership
Consent record (new)	Homeowner	Proves both consents before any request	Assessor's records; produced to SEAI on request	Trial, plus the BER record period
BER datafile (new)	SEAI NAS, through the API	Dwelling geometry, fabric, systems and rating, in place of reading the PDF	Assessor's browser storage	As name and address
Modified BER file and uplift result (new)	Built by PlanitBER; result from the DEAP engine	Energy uplift of each package, beside its cost	Sent to and returned from SEAI's DEAP engine	As name and address
Measures, quantities, costs and grant route	Derived by PlanitBER	To price the works	Printed documents. Contractors get quantities and scope only, never the homeowner's name	As name and address
Recorded spend against estimate (pilot)	Homeowner and contractor quotes	To test the estimate	Assessor's records; aggregated before any return to SEAI	As name and address
Assessor's name and registration number	Assessor	Required by SEAI with each request (Criterion 6)	SEAI	Not homeowner data

SEAI gets aggregated and anonymised figures only: county, dwelling type, age band, measures, estimate, grants and recorded outcome. It never gets the name, address, Eircode, MPRN or BER number in a return. Its copies of the MPRN, proof of ownership and request records come through the API itself, which SEAI holds as an independent controller (clause 3.1).

Lawful basis, necessity and proportionality

The trial processing rests on consent. The core PlanitBER service stays on contract.

Processing	Lawful basis
Producing the three documents from a survey and a dwelling details report, as today	Contract with the homeowner, Article 6(1)(b)
SEAI releasing the BER datafile to PlanitBER	Homeowner's consent, Article 6(1)(a), with Regulation 27(4)(c) of S.I. 243/2012
PlanitBER processing the datafile and sending a modified file to the DEAP engine	A separate consent, Article 6(1)(a), as the Agreement requires (Schedule 1)
Aggregated pilot returns to SEAI	Consent, as document 06 sets out

Necessity. The API does the same job as the PDF report the assessor already reads, with less re-keying and fewer transcription errors. It takes no new categories of data about the dwelling. The new items are the MPRN, proof of ownership and the consent record, and SEAI makes each a condition of every request.

Minimisation. Requests are made one dwelling at a time, only after consent, and never in bulk (Terms, clause 10). Before a utility bill is uploaded, everything except the name, address and MPRN is blacked out: account number, balance, usage and payment details. The homeowner's name never reaches a contractor.

No automated decisions. No decision about a household is made automatically. The assessor reviews every figure, and the homeowner decides whether to proceed.

Transparency. Under clause 21 of the Terms, any change to the transmitted data has to be disclosed to the user. The modified BER file is shown to the homeowner as "your home with the agreed measures". The documents state that the energy uplift is an estimate from the DEAP engine.

Consent management

No request goes to SEAI until both consents are signed and recorded. SEAI's checks on the MPRN back this up.

1. **Inform.** At the survey, the assessor gives the homeowner a one-page privacy notice (open item 3). It says what is requested from SEAI, why, what PlanitBER does with it, who sees it, how long it is kept, and how to withdraw. This meets Article 13 and clause 3.5.
2. **Two separate consents.** The homeowner ticks and signs each one separately (Schedule 1):
 - *Consent A:* "I consent to SEAI releasing the BER record for my home, MPRN _____, to John Turley (PlanitBER), BER assessor reg. 100615."
 - *Consent B:* "I consent to PlanitBER using that record, and a modified version sent to SEAI's DEAP engine, to prepare my cost plan, pricing schedule and appendix."
 - Where an agent signs, a third line confirms their authority to act for the owner (Criterion 3.2).
3. **Verify.** Before sending the request, the assessor checks that the name, address and MPRN on the proof of ownership match the consent form. The MPRN must be clearly legible, because SEAI withholds the datafile if it does not match (Criterion 3.6).
4. **Record.** Each consent record holds the date, the version of the wording, both signatures, the MPRN and the request reference. It is kept in a consent log on the assessor's encrypted computer.
5. **Evidence to SEAI.** The signed form and the redacted proof of ownership are uploaded with the request, in the file format agreed with SEAI before acceptance (Criterion 3.5). When SEAI asks for proof of consent (Criterion 3.3), the log entry and form are sent within 5 working days.
6. **Withdrawal.** The homeowner can withdraw either consent at any time by phone or email. Once Consent B is withdrawn, the datafile and modified file are deleted from the assessor's computer. Documents already issued stay with the homeowner. The household is left out of the next pilot return, and past aggregated returns cannot identify them. Withdrawal is logged with its date.

The homeowner's rights

The assessor deals with every request within one month. All the data is held in one place, so nothing has to be collected from other parties first. Where a request also concerns SEAI's copy, the assessor passes it to SEAI and helps it respond (clause 3.7).

Right	How it is met
Information	The privacy notice is given at the survey, before any consent
Access	A copy of the project, the datafile, the consent record and the three documents
Rectification	Any figure can be corrected and the documents reissued. Errors in the published BER itself are referred to SEAI
Erasure	The project, datafile and consent copies are deleted, except records an assessor must keep. The homeowner is told that SEAI holds the proof of ownership for the trial
Withdrawing consent	As easy as giving it, and recorded (Consent management, step 6)
Portability	The three documents and the datafile, in readable form
Objection and restriction	Made to the assessor as controller, or to SEAI for its own copy
Complaint	Contact details for the Data Protection Commission are in the privacy notice

Risks and measures

Of the nine risks, two start at medium: a record pulled without valid consent, and a leaked API key. With the measures below in place, all nine are low. Likelihood and severity are judged for the homeowner, not the business.

#	Risk to the homeowner	Before measures	Measures	Residual
1	A BER record is pulled without valid consent, or for the wrong dwelling	Possible · significant = medium	Both consents signed before any request. Name, address and MPRN checked against proof of ownership. SEAI withholds the datafile on an MPRN mismatch. Consent log audited by SEAI	Low
2	The API key leaks and someone else pulls records under it	Possible · significant = medium	Key never written into the PlanitBER file, a document or an email. It is held only on the assessor's encrypted computer. One key, one user. Revoked and replaced at once on any suspicion (Terms, clause 8)	Low
3	Proof of ownership exposes more than needed (balance, usage, account number)	Probable · minimal = low	Everything except name, address and MPRN is blacked out before upload. No copy kept once SEAI accepts the request	Low
4	Lost or stolen computer holding datafiles and consent records	Remote · significant = low	Full-disk encryption, screen lock, current updates, encrypted backup. Breach log; the Data Protection Commission told within 72 hours where there is risk	Low
5	Documents emailed to the wrong person	Possible · minimal = low	Addresses checked before sending. The Pricing Schedule carries no homeowner name	Low

#	Risk to the homeowner	Before measures	Measures	Residual
6	A household is identified from pilot returns	Remote · significant = low	Only aggregated figures are returned, with no name, address, Eircode, MPRN or BER number. Any group of fewer than 5 dwellings is merged or held back, and each return is tested for re-identification before it is sent	Low
7	The homeowner takes the DEAP uplift as an official rating or a guarantee	Possible · minimal = low	Labelled on every document as an estimate from SEAI's DEAP engine for the agreed measures, not a published BER (Terms, clause 21)	Low
8	Data kept longer than needed	Possible · minimal = low	Written retention schedule (open item 1), checked at each review. Datafile deleted when consent is withdrawn	Low
9	Data used beyond the consented purpose, such as marketing or contractor leads	Remote · significant = low	One purpose only. No sale or sharing beyond the homeowner and the contractors they choose. Disclosure limited by clause 4.2.2 of the Agreement. No third-party requests from the page once typefaces are served locally (open item 4)	Low

Conclusion and sign-off

The residual risk is low and is accepted, so the processing can go ahead without prior consultation under Article 36. It goes ahead only once the open items below are closed. The DPIA will be redone, not amended, if PlanitBER becomes a hosted service or starts making automated decisions about a household.

Open items, to close before the first request

- ☐ 1. Retention schedule: confirm the record period SEAI's Code of Practice sets for assessors, and write one page on what is kept, for how long, and how it is destroyed
- ☐ 2. Agree the file format for consent evidence with SEAI (Criterion 3.5), and confirm that a redacted utility bill is acceptable
- ☐ 3. Write the privacy notice and the consent form (Consents A and B), and review both before first use
- ☐ 4. Serve the typefaces from the software itself, so a session makes no third-party requests
- ☐ 5. Confirm how the API key is stored once SEAI issues its technical documentation after acceptance, and update risk 2 if needed
- ☐ 6. Set up the consent log and the breach log on the assessor's encrypted computer

Sign-off

Approved by	John Turley, controller
Signature	
Date	
Next review	Before the first request, at month 6 of the trial, and at its end

Sources

- [SEAI Pilot Projects: NAS Trusted Partner API](#)
- [Trusted Partner Agreement](#)
- [Trusted Partner Terms and Conditions](#)
- PlanitBER document 06, Data Protection, issued 8 October 2026